

		entitled to same treatment as represented parties); <i>Lawrence v. Superior Court</i> (1988) 206 Cal.App.3d 611, 619 (“all litigants should be held to a generally applicable procedural rule, whether or not they are aware of it”).) A Case Management Conference is scheduled for October 22, 2026, in Department N18 at 9:00AM. The clerk will give notice.
4.	2024-1444220 Windisch vs. General Motors, LLC	<u>MOTION FOR JUDGMENT ON THE PLEADINGS</u> Defendant General Motors, LLC’s motion for judgment on the pleadings with respect to Plaintiffs’ fifth cause of action for fraudulent inducement by concealment in the Second Amended Complaint (“2AC”) is granted without leave to amend, subject to the discussion below concerning leave to amend.. A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (<i>Stoops v. Abbassi</i> (2002) 100 Cal. App. 4th 644, 650; Code Civ. Proc. § 438(c)(1)(B)(ii).) As with a demurrer, the grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (Code Civ. Proc. § 438(d).) Extrinsic matters may not be considered; the pleading under attack must be accepted as true. (<i>Id.</i>) Defendant argues that the fraud cause of action is barred by the three-year statute of limitations in Code Civ. Proc., § 338(d). Plaintiffs allege in the 2AC that they purchased the vehicle on March 28, 2015. (2AC, ¶ 6.) They claim that they “discovered Defendant’s wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM’s unsuccessful attempts to repair them.” (2AC, ¶ 19.) Additionally, Plaintiffs state that the “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period....” (2AC, ¶ 25.) The express warranty period was a maximum of five years. (2AC, ¶ 10, Ex. A [express warranty terms].) Five years from March 28, 2015, was March 28, 2020. Even if the last defect within the warranty period manifested itself on March 28, 2020, giving rise to a suspicion of wrongdoing, three years from that date was March 28, 2023. (See <i>Cypress Semiconductor Corp. v. Superior Court</i> (2008) 163 Cal.App.4th 575, 585-586 [“plaintiff has reason to discover a

cause of action when he or she “has reason at least to suspect a factual basis for its elements”; accrual “does not wait” until liability becomes “a legal certainty”].) Plaintiffs did not file this action until December 3, 2024, more than 20 months beyond this deadline.

Where a complaint on its face appears time-barred, the plaintiff must affirmatively “plead around” the statute of limitations defense. (See, e.g., *Lewis v. Security-First Nat. Bank of Los Angeles* (1943) 58 Cal. App. 2d 827, 829 [The delayed discovery rule is not satisfied by the mere allegation that plaintiff did not discover the fraud prior to a designated date.]) Moreover, the plaintiff must plead those facts with particularity, as required for a fraud cause of action. (*Weinstock v. Eissler* (1964) 224 Cal.App.2d 212, 227-228 [“plaintiff must state in his complaint when the discovery was made, the circumstances under which it was made, and facts to show that [he] is not at fault for not having made an earlier discovery, and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry.”])

As pleaded, the fifth cause of action appears time-barred by the applicable three-year statute of limitations for fraud. Plaintiffs do not allege what defects remained in the vehicle after the repair attempts or how Plaintiffs discovered those defects or any other facts to support delayed discovery. (See *Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638 [California law recognizes a general, rebuttable presumption that plaintiffs have knowledge of the wrongful cause of an injury; in order to rebut that presumption, “[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must *specifically plead facts* to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence”].) In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to show diligence; conclusory allegations will not withstand demurrer. (*Id.*)

Therefore, the motion is granted. This is the second time Defendant has challenged the sufficiency of Plaintiffs’ complaint. Plaintiffs did not oppose Defendant’s initial demurrer.

Unless Plaintiffs can articulate specific facts at the hearing that they can allege in support of this claim, leave to amend is denied.

MOTION TO STRIKE

Defendant General Motors, LLC’s motion to strike the punitive damages claim from Plaintiffs’ Second Amended Complaint (“2AC”) is denied.

		To the extent that Plaintiffs are claiming punitive damages in relation to the fraud cause of action, the motion is moot based on the above ruling on the motion for judgment on the pleadings. The motion is also untimely. Defendant itself cites the rule on this in its motion: “Under Code of Civil Procedure (“CCP”) section 435, ‘Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.’” (Motion, p. 2.) The Second Amended Complaint was filed on December 18, 2025. Defendant filed its answer on 2/10/26. (It was due earlier than this, 30 days after service of the 2AC pursuant to Code Civ. Proc., §435(b)(1).) The motion to strike was not filed until 3/26/26 and is therefore untimely. Defendant shall give notice of both rulings.
5.	2025-1457567 Plane Fetch Charter LLC vs. Firm Foundation Aviation, LLC	The motion to consolidate filed by Defendant/Cross-Complainant Firm Foundation Aviation, LLC and Cross-Complainant Timothy Lomakin is granted. When actions involving common questions of law or fact are pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or make such orders concerning proceedings. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures) and to avoid the substantial danger of inconsistent adjudications (i.e., different results because the actions are tried before different factfinders). (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial at ¶ 12:340.) The Court finds there are common questions of fact or law such that consolidation would serve the ends of justice as well as judicial economy and efficiency. The motion is granted. The Court consolidates the following actions for all purposes: 1. Plane Fetch Charter LLC et al. v. Firm Foundation Aviation, LLC et al., case no. 30-2025-01457567; and 2. Plane Fetch LLC v. Firm Foundation Aviation, LLC, case no. 30-2025-01457617. The case with the lower number, ending in -7567, is the lead case. (Cal. R. Ct. Rule 3.350(b).)